

Email- acc.compliance@epfindia.gov.in

Tel:011-26172672

Fax:011-26103100

Through Web Circulation



कर्मचारी भविष्य निधि संगठन

(श्रम एवं रोजगार मंत्रालय, भारत सरकार)

EMPLOYEES' PROVIDENT FUND ORGANISATION

(Ministry of Labour & Employment, Govt. of India)

मुख्य कार्यालय / Head Office

भविष्य निधि भवन, 14-भोकाजी कामा प्लेस, नई दिल्ली-110 066.

Bhavishya Nidhi Bhawan, 14, Bhikaiji Cama Place, New Delhi - 110 066.

LC-4(7)2010/GJ/HC/Pt.2/4329

Date: 22.05.2014

22 MAY 2014

To,

All Regional Provident Fund Commissioners
In Charge of Regional/Sub-Regional Offices

**Subject : Instructions on handling legal cases where Union of India
is a Proforma party.**

Sir,

It has been experienced that the Union of India is invariably impleaded as Proforma party in cases at different legal forum. When replies are filed on the behalf of Union of India the same are not brought to the notice of Head Office with all case details. As a result it unnecessarily causes embarrassment at eleventh hour.

2. The Ministry of Labour & Employment vide its letter No. S-35018/6/2014-SS.II dated 31.03.2014 directed that wherever Union of India is a Proforma Party, the following actions shall invariably be taken.

- (i) Efforts should be made to drop the name of Union of India in cases where it is only a Proforma Party.
- (ii) The draft reply shall be prepared and sent to Ministry through Head Office for vetting, if any, to be filed on behalf of Union of India before Hon'ble Court.
- (iii) Necessary action be taken to defend the interest of Union of India in these cases under intimation to Head Office and Ministry.
- (iv) The development of these cases may be brought to the notice of Head Office and Ministry from time to time.

3. The above instructions must be followed unfailingly.

Yours faithfully,

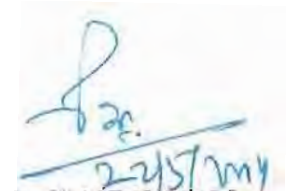


(P. K UDGATA)

Addl. Central P. F. Commissioner (Compliance)

011-26172672

Copy to: All Addl. CPFCs (Zone) for information and necessary action.



P. K UDGATA)

Addl. Central P. F. Commissioner (Compliance)

जारी किया
ISSUED